

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

LEO NIBAL,

Plaintiff,

-against-

CITY OF NEW YORK, JOSEPH O'SHEA,
KENNETH BROWN, ANDRE ANDERSON,
SEAN JORDAN, VLADIMIR A. GARCIA, and
JOHN and JANE DOE 1-10,
Defendants.

Index No.:

Date Purchased:

Plaintiff designates New York County as
place of venue.**SUMMONS**The basis of the venue is:

Situs of the Occurrence

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: October 1, 2024
New York, New YorkYours, etc.,
ELEFTERAKIS, ELEFTERAKIS & PANEKBy: Michael Gluck, Esq.,
Attorneys for the Plaintiff
80 Pine Street, 38th Floor
New York, New York 10005
(212) 532-1116

Defendants:**CITY OF NEW YORK**

100 Church Street

New York, New York 10007

Joseph O'Shea

Tax Id# 964193

33rd Precinct

2207 Amsterdam Avenue

New York, New York 10032

Kenneth Brown

Tax Id# 960284

32nd Precinct250 West 135th Street

New York, New York 10030

Andre Anderson

Tax Id#964886

Queens Court Section

125-01 Queens Boulevard

Kew Gardens, New York 11415

Sean Jordan

Tax id# 956011

33rd Precinct

2207 Amsterdam Avenue

New York, New York 10032

Vladimir A. Garcia

Tax Id# 941021

Narcotics Borough Bronx

500 Abbott Street

Bronx, New York 10470

Failure to respond will result in a judgment against you by default and interest from July 5, 2023.

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

LEO NIBAL,

Plaintiff,

-against-

CITY OF NEW YORK, VLADIMIR A.
GARCIA, JOSEPH O'SHEA, KENNETH
BROWN, ANDRE ANDERSON, SEAN
JORDAN and JOHN and JANE DOE 1-10,
Defendants.

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VERIFIED COMPLAINT

Plaintiff LEO NIBAL, by his attorneys, ELEFTERAKIS, ELEFTERAKIS & PANEK,
complaining of the defendants, respectfully alleges:

JURISDICTION

1. This action falls within one or more of the exemptions set forth in CPLR § 1602.
2. The action arises under the laws of the State of New York.
3. Jurisdiction is conferred by the laws of the State of New York.
4. On or about October 2, 2023, and within ninety (90) days after the claim arose, plaintiff served, presented, and duly filed a Notice of Claim, in writing, upon defendants in accordance with General Municipal Law 50-e, and which set forth the following:
 - a. the nature of the claim;
 - b. the time when, place where, and manner in which the claim arose; and
 - c. the items of damages and injuries sustained.

5. That more than thirty (30) days have elapsed since the presentation of the aforesaid claim, and defendants have neglected and/or refused to make an adjustment and/or payment on plaintiff's claim.

6. Pursuant to G.M.L. § 50-h, the City of New York examined plaintiff LEO NIBAL on or about February 7, 2024.

7. That the action has been commenced within one year and ninety days of the accrual of the cause of action.

PARTIES

8. Plaintiff is a resident of the State of New York.

9. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. Defendant City, acting through the New York Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

10. At all relevant times, the individual defendants were employees of defendant City of New York and acting in the scope of their employment and under color of law. The individual defendants are sued in their individual capacities.

11. John and Jane Doe 1-10 are Police Officers and/or supervisors involved in the illegal conduct set forth herein that deprived plaintiff of his rights. Plaintiff does not know the

true names of John and Jane Doe 1-10 and they are sued in their individual capacities and as employees of defendant City.

12. At all times here mentioned, the individual defendants were acting under color of state law.

STATEMENT OF FACTS

13. On July 5, 2023, at approximately 2:25 a.m., plaintiff was lawfully present inside the vestibule of his building 247 Audubon Avenue in New York, New York.

14. The defendants, uniformed employees of the NYPD acting in the scope of their employment, approached plaintiff without probable cause or reasonable suspicion, seized him, held him to the ground, brutally beat him, handcuffed and violently arrested him.

15. Mr. Nibal was detained at the 33rd Precinct for several hours before being transported to central booking.

16. After remaining at Central Booking for approximately 16 hours in abhorrent conditions, the district attorney declined to prosecute, and plaintiff was released from custody without being charged.

17. Plaintiff suffered injuries to, *inter alia*, his head, back and face as a result of the excessive force used by defendants.

18. Plaintiff has received extensive treatment for the injuries sustained at the hands of the defendants.

19. As a result of the foregoing, plaintiff suffered, *inter alia*, loss of liberty, emotional distress, mental anguish, fear, pain, physical injury, anxiety, embarrassment, humiliation and damage to his reputation.

FIRST CLAIM
False Imprisonment

20. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

21. By their conduct, as described herein, the individual defendants are liable to plaintiff for falsely imprisoning him.

22. Plaintiff was conscious of his confinement.

23. Plaintiff did not consent to his confinement.

24. Plaintiff's confinement was not otherwise privileged.

25. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

26. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein alleged.

SECOND CLAIM
Assault & Battery

27. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

28. By their conduct, as described herein, the defendants are liable to plaintiff for having assaulted and battered him.

29. Defendant CITY OF NEW YORK, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

30. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

31. By reason of the assault and battery, LEO NIBAL sustained damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction.

32. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein alleged.

THIRD CLAIM

Negligence; Negligent Hiring/Training/Retention

33. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

34. Defendant City, through the NYPD, owed a duty of care to plaintiff to prevent the conduct alleged, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to plaintiff or to those in a like situation would probably result from the foregoing conduct.

35. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

36. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants were potentially dangerous.

37. Upon information and belief, defendant City's negligence in screening, hiring, training, disciplining, and retaining these defendants proximately caused each of plaintiff's injuries.

38. Upon information and belief, defendant City's negligence caused plaintiff's injuries.

39. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

FOURTH CLAIM

Negligent or Intentional Infliction of Emotional Distress

40. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

41. By reason of the foregoing, the defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each were negligent (or intentional) in committing conduct that inflicted emotional distress upon plaintiff.

42. The negligent (or intentional) infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

43. Defendants, their officers, agents, servants, and employees were responsible for the negligent (or intentional) infliction of emotional distress upon plaintiff. Defendant City, as employer of each of the defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

44. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

FIFTH CLAIM
Violation of Plaintiff's 8-803 Rights

45. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

46. The actions of defendants violated plaintiff's rights as defined in Section 8-802 of Chapter 8 of New York City Administrative Code.

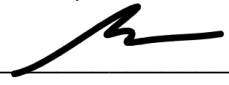
47. As such, immunity is not a defense to the violations of plaintiff's rights and plaintiff demands and is entitled to the relief described in Section 8-805.

48. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, plaintiff LEO NIBAL demands that judgment, compensatory, exemplary and punitive, in an amount exceeding jurisdictional limits of all lower Courts be entered against defendants on all counts, along with reasonable attorney's fees and costs.

Dated: October 1, 2024
New York, New York

ELEFTERAKIS, ELEFTERAKIS & PANEK,

By: _____

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